

HOUSE No. 2357

The Commonwealth of Massachusetts

PRESENTED BY:

Steven George Xiarhos

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act amending the charter of the town of Sandwich.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>1/13/2025</i>

HOUSE No. 2357

By Representative Xiarhos of Barnstable, a petition (accompanied by bill, House, No. 2357) of Steven George Xiarhos (by vote of the town) that the charter of the town of Sandwich to be amended to change the town clerk position from an appointed position to an elected position. Municipalities and Regional Government. [Local Approval Received.]

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 4509 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act amending the charter of the town of Sandwich.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 4.1 of article IV of the charter of the town of Sandwich, as
2 appearing in section 2 of chapter 22 of the acts of 2014, is hereby amended by striking out the
3 words "a town clerk;".

4 SECTION 2. Said article IV of said charter, as so appearing, is hereby further amended
5 by striking out section 4.5 and inserting in place thereof the following section:-

6 Section 4.5 TOWN CLERK

7 There shall be an appointed town clerk. The position of town clerk shall be that of a
8 department head appointed in accordance with the process used for appointing other department
9 heads.

10 SECTION 3. Notwithstanding any general or special law to the contrary, the position of
11 elected town clerk in the town of Sandwich shall be abolished upon the effective date of this act
12 and the term of the elected incumbent terminated; provided, however, that the elected incumbent
13 shall then become the first appointed town clerk and shall serve in that capacity for a period of
14 time equivalent to the remainder of the elected term or sooner resignation, retirement or removal.
15 Thereafter, appointments to the position of town clerk shall be made pursuant to section 4.5 of
16 article IV of the charter of the town of Sandwich.

17 SECTION 4. This act shall take effect upon its passage.